IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. s(Civil) Nos. 33470-548/2014

IN THE MATTER OF:

Mr. B.P. Naveen and others Etc. Petitioners

Versus

The State of Karnataka
Rep. by the Secretary and others Respondents

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioners above-named respectfully showeth :-

I.A. NO. / FOR INTERIM DIRECTIONS

The petitioners above-named respectfully submit as follows:-

1. The applicants herein are the petitioners in the aforementioned Civil Appeals which have arisen from the common order dated 23.9.2014 rendered by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, in W.P. Nos. 6842-6880/2010 (S-KAT) connected with W.P. No. 8215/2010 and companion petitions.

2. The applicants are hereinafter referred to for the sake of brevity and clarity as the petitioners in the instant civil appeals. They sought recruitment to the cadre of Inspectors of Motor Vehicles in the Transport Department of the State of Karnataka, pursuant to the Notification dated 18.8.2006 issued by the KPSC, which notified initially 245 vacancies in the said cadre. By a later notification the number of vacancies originally notified on 18.8.2006 was reduced from 245 to 145, the petitioners applied in response thereto well within the outer-limit of time that the KPSC had prescribed in that behalf, their applications were quite in order. They were duly scrutinised by the Commission which found them eligible for being subjected to the process of recruitment, they were even interviewed by the Commission, whereupon a Select List of candidates which included all the petitioners herein was published by the Commission. It culminated in a final notification dated 28.3.2009 (Annexure-P4 at pages 194 to 212 of the civil appeal paper book).

3. Having been duly selected by the commission which had assessed the intellectual traits of personalities of all the candidates including the petitioners, had shown the names

of the petitioners also as having been selected for appointment.

4. Under the scheme of the rules of recruitment to the cadre of Motor Vehicle Inspectors in the State of Karnataka is the appointing authority in respect of the said cadre. He issued orders of appointment to 103 candidates who had been included in the common final selection list dated 28.3.2008. Quite shockingly and strangely when yet another list dated 16.9.2008 (Annexure-P5 at pages 213 to 230 of the civil appeal paper book) was published the names of the petitioners were not found therein. There was no conceivable reason for the same. When the petitioners requested the Commission as to why their names have not been included an endorsement which is filed with the Civil Appeals as Annexure-P6 at pages 231 to 232 of the civil appeal paper book was issued by the Commissioner for Transport, on 25/30.9.2008 intimating that at a meeting dated 8.7.2008 presided over by the Minister for Transport in Karnataka, it was resolved that the petitioners "were not considered for appointment for the post of Motor Vehicle Inspectors" as they had statedly failed in physical fitness test as per a report dated 12.9.2008 received from the General Hospital, Jaynagar, Bangalore. The petitioners were not known of the contents of the said letter dated 12.9.2008 by which the office of the Transport Commissioner was informed that the petitioners had failed in the physical fitness test.

5. Whereas the final select list of candidates contained 145 names out of whom 103 candidates including those who did not even possess the prescribed qualification under the rules of recruitment were served with orders of appointment, the petitioners were not issued with any such orders of appointment. They therefore invoked the jurisdiction of the Karnataka Administrative Tribunal, Bangalore, with application in A.No. 5232/2008 and companion application praying interalia for an order declaring "that the physical standards prescribed under the Notification dated 18.8.2006 and State Government Amendment Rule 2 (2) made by Notification dated 4.5.1987 and amendment Rule 2 (3) made by Notification dated 24.11.2005 (Annexure-A1 & A9) are ultra vires the Motor Vehicles Act, 1988 more particularly Sec. 213 (4) of the said Act, Central Government Notification No.F-RT-11014/89 dated 12.6.1989 and consequently declare that the applicant is eligible and entitled to be appointed as Motor Vehicle Inspector".

6. The third relief sought before the Tribunal (as seen from pages 248 and 249 of the civil appeal paper book) was for direction to governmental respondents to issue orders of appointment to the petitioners as Motor Vehicle Inspectors with effect from 16.9.2008 – the date on which the persons who had been ranked below the names of the petitioners, in the select list were appointed. The said application having been filed on 28.10.2008 (at page 249 of the civil appeal paper book), the same were notified to the respondents therein from whom no reply came forth. Therefore after

hearing the parties to the proceedings and considering the invidious discrimination that has been practiced against the petitioners in not appointing them, on the ground of their being statedly found unfit by physical standards, the Hon'ble Tribunal passed its final order directing that the petitioners be appointed in pursuance of the selected list. The said order of the Tribunal having been questioned by certain unsuccessful candidates whose names had not figured in the final select list or even in the provisional select list including an interim order of stay of the implementation of the directions issued by the Tribuna had been granted by the Hon'ble High Court of Karnataka at Dharwad, later some other candidates whose names also not figured in the select list filed writ petitions in the High Court of Karnataka at its Principal Bench, Bangalore, questioning the very order of the Tribunal.

7. Whereas the writ petition filed in the Circuit Bench of the Hon'ble High Court of Karnataka, Dharwad, were withdrawn by the petitioners unconditionally and consequently the interim order passed therein stood dissolved, even the State of Karnataka and the Commissioner for Transport who had initially questioned the very order of the Tribunal also did not press the writ petitions being convinced that there was no reason for them to question the said order and that it was necessary for the State and its authorities to issue orders of appointment to the petitioners and others who were and are eligible for appointment as Motor Vehicle Inspectors. Furthermore, on account of the passage of time many of the petitioners in

whose favour the mandate issued by the Tribunal had been operating were becoming age-barred and they being unemployed required a source of livelihood, the State and the Commissioner genuinely felt that the writ petition filed by them would require to be withdrawn for enabling them to issue orders of appointment to the petitioners.

8. Quite unfortunately before any such order of appointment was issued to them the impugned judgment dated the 23rd September 2014 having been rendered by a Division Bench of the Hon'ble High Court of Karnataka, the order passed by the Tribunal has been reversed, thereby dismissing the applications of the petitioners, filed before the Tribunal. As a result thereof the appointing authority has not been able to issue orders of appointment to the petitioners, notwithstanding the initial success of the petitioners in the proceedings before the Tribunal. The petitioners who have felt highly aggrieved by the reversal of the orders passed by the Tribunal have, therefore, filed the aforementioned/instant civil appeals, praying for restoring the order of the Tribunal and for reversing the one passed by the Hon'ble High Court.

9. Notice of the appeals having been ordered, the civil appeals have been tagged on with the civil appeals filed by the State of Karnataka and the Commissioner for Transport who have also felt aggrieved by the very order of the Hon'ble High Court. They have althrough, supported the selection and have found that the non-appointment of the petitioners as inflicted an injury in law, on the petitioners. It

is for the said reason that, after due deliberations the Government and the Commissioner withdrew their writ petition as not pressed.

10. In view of the reversal of the order passed by the Tribunal, and the operation of the said order has not been stayed in the Civil Appeals. Eventhough such of the appointees who are petitioners in the companion civil appeals have been directed to be continued in service, pending of the civil appeals, the State and the Commissioner have not issued any orders of appointment to the petitioners.

11. Though the petitioners have been selected for appointment in pursuance of the notification dated 18.8.2006 in the year 2008 itself and among the selected candidates 103 candidates have been served with orders of appointment and have been even allowed to continue in service during the pendency of the civil appeals filed by them and by the State of Karnataka, the petitioners whose names appear in the select list have been without any employment or source of livelihood for the last nearly a decade, they are agreeable for securing the State, subject to the final outcome of the instant civil appeals, they do not seek to plead equity in their favour in the ultimate result of the civil appeals, for enabling them to earn their livelihood, it is therefore, just and necessary that an interim direction as prayed for herein is graciously issued by this Hon’ble Court.

12. In the circumstances stated above, it would, in the most respectful submission of the petitioners appropriate and necessary for avoiding further injury to the petitioners that an interim direction as prayed for herein be granted in the instant civil appeals, subject to the result thereof and pending disposal thereof, in the interest of justice and equity.

13. It is respectfully prayed accordingly.

NEW DELHI ADVOCATE FOR THE PETITIONERS
DATE:

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AFFIDAVIT

I, B.P. Naveen, s/o. late Puttaswami Gowda, age 35 years, unemployed, R/at No.276/141, 9th Main Pipeline, Vijayanagar, Bangalore- 560 040, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I say that I am the first petitioner in the aforementioned Civil Appeals. As such I am well acquainted with the facts of this case and I am authorised to swear to this affidavit on behalf of the other petitioners also.

2. I say that the contents of the accompanying interlocutory application, for interim directions have been read and understood by me and the same are true to the

best of my knowledge and belief and also based on the information which I believe to be true.

3. I say that no facts that were not pleaded before the courts below have been pleaded in this affidavit.

DEPONENT

VERIFICATION

I am the deponent above named do hereby verify that the contents of paragraph 1 to 12 of my affidavit are true to my knowledge, no part of it is false and nothing material has been concealed therefrom.

Verified at on the day of October 2015.

DEPONENT

No.of corrections

Identified by me

Advocate